

Ruling on the Demurrer

The Court sustains Cross-Defendant's demurrer to the first (breach of contract), second (fraud), and third (unjust enrichment) causes of action, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 20 days of notice of entry of this order. (CCP, §472b; CRC, rule 3.1320(g).)

11. 9:00 AM CASE NUMBER: C25-01064
CASE NAME: WILTON SHORT VS. FRANKLIN CREDIT MANAGEMENT CORP.
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: FRANKLIN CREDIT MANAGEMENT CORP.
TENTATIVE RULING:

Defendant's Hearing on Demurrer to First Amended Complaint is continued to: June 05, 2026, at 9:00 a.m.

12. 9:00 AM CASE NUMBER: C25-02606
CASE NAME: JAMEIZ TERRELL VS. BISA FRENCH
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

The Court continues the hearing on this motion to June 5, 2026 at 9:00 a.m.

13. 9:00 AM CASE NUMBER: MSC20-02420
CASE NAME: ROBINSON VS ANTIOCH UNIFIED SCHOOL
HEARING ON SUMMARY MOTION JUDGMENT/ADJUDICATION
FILED BY: ANTIOCH WATER PARK
TENTATIVE RULING:

Before the Court is Defendant City of Antioch and Antioch Water Park (collectively, "Defendants")'s motion for summary judgment ("MSJ"). The MSJ relates to Plaintiff Jayson Robinson ("Plaintiff")'s complaint for damages arising out of a drowning accident at a municipal water park. The motion relates to Plaintiff's First Amended Complaint for (1) Government Code § 815.2 (against City of Antioch) and (2) negligence (against all Defendants).

Defendants move for summary judgment or in the alternative summary adjudication on the grounds that Plaintiff's claims are barred by the assumption of risk affirmative defense.

For the following reasons, the MSJ is **denied**.

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for